

Case ref: CASE-2020712
Doc ref: CD/20/25596

21 May 2020

Mr Richard McLean
Via email: rich@richmclean.com.au

Dear Mr McLean

Your complaint regarding the Australian Health Practitioner Regulation Agency (AHPRA) and Victoria Police

I refer to your further correspondence, received by IBAC on 10 May 2020.

Firstly, I want to say that I am sorry this matter is causing you concern. Your dissatisfaction with IBAC's determination is noted and I advise you that IBAC's decision was made after careful consideration of all relevant material provided and in line with our jurisdiction and proper processes. The correspondence you have provided has not caused IBAC to alter its determination and your complaint remains finalised and we consider this matter closed.

You may contact the Victorian Inspectorate if you have wish to make a complaint about IBAC or the conduct of its officers.

Our records show you lodged two online complaints with IBAC on 4 March 2020 and 6 March 2020 in regard to alleged malpractice by Dr John Whitaker of the Millenium Medical Centre in Footscray. You also raised issues with AHPRA and Victoria Police failing to adequately investigate your complaint regarding Dr Whitaker. IBAC conducted an assessment of the information you provided and determined that the issues raised did not warrant investigation or referral to another agency for investigation. We advised you of this outcome in writing on 9 April 2020.

Your recent correspondence to IBAC seeks an explanation as to why IBAC does not think your case against Dr Whitaker being professionally negligent and engaging in medical malpractice was valid.

As per the outcome letter sent to you on 9 April 2020, AHPRA does not fall within IBAC's jurisdiction and consequently cannot be investigated by this agency. AHPRA is a federal body and it does not meet the definition of a 'public body' as per section 6 of the *Independent Broad-based Anti-corruption Commission Act 2011*. IBAC only has jurisdiction over matters regarding corruption in Victorian state public sector bodies, of which AHPRA is not one.

As previously informed, in the outcome letter dated 9 April 2020, IBAC does not have jurisdiction over the conduct or actions of medical practitioners, such as Dr Whitaker. As Mr Whitaker was working for a private medical centre, IBAC is unable to investigate or consider his alleged actions, as it is outside of our jurisdiction.

IBAC does not make any judgement regarding the validity or otherwise of your allegations regarding Dr Whitaker's alleged conduct and the actions taken by AHPRA, as explained above, we are unable to consider these aspects of your complaint.

In regard to your allegation concerning Victoria Police failing to investigate your complaint against Dr Whitaker and AHPRA, the information available does not demonstrate that any member of Victoria Police has engaged in misconduct or corruption.

The information provided demonstrates that Victoria Police considered your complaint and determined the matter did not fall within their jurisdiction to investigate. You were also advised that AHPRA has an internal appeal mechanism, and if you were unhappy with the outcome of their investigation you may wish to use that process. Victoria Police has advised they have assessed your report and have made a considered decision that they are not in a position to investigate the matter. No evidence is provided to demonstrate collusion between the Victoria Police members and AHPRA or Dr Whitaker, or a conspiracy to have the matter avoid appropriate investigation.

To better understand IBAC's assessment process, the definition of 'corrupt conduct' and the thresholds for IBAC to investigate corruption, you may wish to visit our website www.ibac.vic.gov.au. Please note, that we will not be engaging in further correspondence unless you have new information to provide.

Yours sincerely

A handwritten signature in dark ink, appearing to read 'Sue', followed by a large, stylized circular flourish.

Sue Kapourelakos
Manager
Assessment & Review